

26STCP01256 26STCP01256

County: los-angeles

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Case Number: 26STCP01256 Hearing Date: July 1, 2026 Dept: 833

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 72

TENTATIVE RULING

ANTONY GLEN KROO,

Petitioner,

v.

LOS ANGELES COUNTY DEVELOPMENT AUTHORITY (LACDA),

Respondent.

Case No: 26STCP01256

Hearing Date: July 1, 2026

Calendar

Number: 12

Respondent Los Angeles County Development Authority moves
to quash the service of summons and complaint filed on April 8, 2026 and set
for hearing on July 1, 2026.

Respondent Los Angeles County Development Authority's motion to quash service of summons and complaint is GRANTED.

Background

On

March 30, 2026, Petitioner Antony Glen Kroo ("Petitioner") filed a Petition for Writ of Mandate and Complaint for Declaratory Relief against Respondent Los Angeles County Development Authority ("LACDA" or "Respondent") and EAH Housing, Hojas De Plata Owners ("Real Party-in-Interest").

On

June 9, 2026, LACDA filed the current Motion for Quash Service of Summons. On June 11, 2026, Petitioner filed an Opposition. To date, no reply has been filed.

Legal Standard

"A defendant, on or

before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶](1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. [¶](2) To stay or dismiss the action on the ground of inconvenient forum. [¶](3) To dismiss the action pursuant to the applicable provisions of Chapter 1.5 (commencing with Section 583.110) of Title 8." (Code Civ. Proc., § 418.10, subd. (a).)

On a motion to quash

service of the summons and complaint, the moving party must first present some admissible evidence, such as declarations or affidavits, to place the issue of minimum contacts before the Court. (School Dist. of Oskaloosa County v. Superior Court (1997) 58 Cal.App.4th 1126, 1131.) "When a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568; see also Elkman v. National States Ins. Co. (2009) 173 Cal.App.4th 1305, 1312-13 ["Where a nonresident defendant challenges jurisdiction by way of a motion to quash, the plaintiff bears the burden of establishing by a preponderance of the evidence that minimum contacts exist between the defendant

and the forum state to justify imposition of personal jurisdiction.”].)

Evidence of the facts giving rise to personal jurisdiction or their absence may be in the form of declarations. (Arensen v. Raymond Lee Organization, Inc. (1973) 31 Cal.App.3d 991, 995.)

California's long-arm statute permits a court to exercise personal jurisdiction on any basis consistent with state or federal constitutional principles. (Code Civ. Proc. [“CCP”] §410.10.)

Discussion

LACDA contends that the summons and complaint were not properly served through personal service, substituted service, and/or a properly executed Notice of Acknowledgment and Receipt under Code of Civil Procedure Section 415.30, or other authorized method of service. (Mot. at 4:14-17.) The Court agrees.

“A summons may be served by mail as provided in this section. A copy of the summons and of the complaint shall be mailed (by first-class mail or airmail, postage prepaid) to the person to be served, together with two copies of the notice and acknowledgment provided for in subdivision (b) and a return envelope, postage prepaid, addressed to the sender.” (Code Civ. Proc., § 415.30, subd. (a).) Here, Plaintiff served LACDA via first-class mail on April 7, 2026, thereafter emailed courtesy copies. (Mot. at 4:13-14; POS, 4/8/26.) However, there is no indication that two copies of the Notice of Acknowledgment and Receipt form were mailed to LACDA. (Id.) Although Plaintiff asserts that LACDA had actual notice of the lawsuit and filed a purported Notice of Acknowledgment and Receipt, it is not in compliance with Code of Civil Procedure Section 415.30, subdivision (b). (Reyes Decl., ¶6.) In fact, Plaintiff’s “Notice of Acknowledgment and Receipt” merely includes email correspondence between Plaintiff and LACDA’s Risk Manager stating that the complaint was being referred to LACDA’s legal counsel. (Not. of Acknowledgment and Receipt, 5/18/26.) Furthermore, neither party contends that LACDA completed and return any Notice of Acknowledgment and Receipt form per Code of Civil Procedure Section 415.30, subdivision (c). (Dawson Decl., ¶13; Reyes Decl., ¶4; Opp. at 2:4-14.) As such, Plaintiff failed to effectuate service via mail on LACDA.

Next, Plaintiff has not filed any

proof that LACDA was served via personal or substituted service in accordance with Code of Civil Procedure Sections 415.10 and 416.50, subdivision (a). (Dawson Decl., ¶12.) Additionally, Plaintiff cites to no legal authority to support the contention once a request for entry of default is filed, a defendant cannot move to quash the service of summons. Contrarily, when default has been entered against a defendant, the only remedy is to move to set aside default judgment per Code of Civil Procedure Sections 473, subdivision (b) or (d), and Code of Civil Procedure Section 437.5. To the extent that Plaintiff also contends that the present motion is untimely because he filed a request for entry of default first, the time to file a responsive pleading is triggered by proper service of the summons and complaint. No proper service of the summons and complaint was executed in this case. Thus, the motion to quash is timely.

Based on the foregoing, Respondent Los Angeles County Development Authority's motion to quash service of summons and complaint is GRANTED.